Conflict in Myanmar is often referred to in the context of disputes over land, armed conflict between ethnic groups and the military, or violence directed against Muslims, as other chapters in this volume demonstrate (see in particular Chit Win, this volume). In this chapter, however, I examine conflict from a different angle by exploring the dual capacity of law as a tool to manage conflict, but also as an instrument that can be used to exacerbate conflict.

One way that law has been analysed in relation to conflict is in terms of the connection between law and violence. In his classic opening line, "Legal interpretation takes place in a field of pain and death", Robert Cover (1995) focuses on the way violence is primarily evident in law through the process of interpretation. While the idea of interpretation is conceived in various ways due to the textual nature of law, this is often considered in terms of legal interpretation by the courts. The scholarship that has developed around Cover's work on law and violence includes focus on judicial interpretation and the role of judges, as well as its connection to criminal trials, practices of punishment, and torture (Cover 1995; Sarat and Kearns 1993; Sarat 2001).

Building on Cover's work, Sarat and Kearns (1993) identify several ways that violence justifies the existence of law, despite the fact that modern law denies that its origins lie in violence. This includes the way violence offers the reason for the establishment of a legal system; violence justifies the existence of law; and violence acts as one means through which the law is enforced. While Sarat and Kearns' edited volume covers a range of topics, many contributions focus on criminal law, penal sanctions, and the role of the courts. This focus on courts and the role of a judge presumes that disputes can and will be heard in court.

But what about in legal systems where cases never have a chance to get to court in the first instance? This may be particularly true in authoritarian or transitional regimes, where there are few opportunities for individuals to challenge government decisions, or where, in fact, the system is designed so that individuals will not be able to review government decisions. When we look at the internal structure and lines of authority set out in legislation in Myanmar, it is clear that few matters between individuals and the state are ever able to go to court. The courts are primarily concerned with matters of criminal law, family law, and civil law, while most legislation passed in the reform period explicitly anticipates that disputes will not be able to go to court.